

25STCV05334 25STCV05334

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Case Number: 25STCV05334 Hearing Date: July 13, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July
13, 2026

CASE NAME: Melia

Alvarado, et al. v. Apts Mgmt, LLC

CASE NO.: 25STCV05334

DEMURRER

WITH MOTION TO STRIKE

MOVING PARTY: Defendants

Mark Crawford, Mary Crawford aka Joanna Crawford, Apts Management, LLC, Gelber
Apts, LLC, and Expo Apts, LLC[1]

RESPONDING PARTY(S):

REQUESTED RELIEF:

1. Demurer

to all claims in the SAC by Plaintiffs Gabriela Aju Valenzuela, Lilian

Gutierrez, Hazel Climaco-Zepeda, Luis Cisneros, Kevin Cardoso, and Hazam

Muhammed (adult plaintiffs) as barred by the applicable statutes of

limitations;

2. Demurrer

to all claims in the SAC by Plaintiff Gabriela Aju Valenzuela for misjoinder;

3. Demurrers

to the sixth cause of action (intentional infliction of emotional distress), eighth cause of action (willful interruption of services), and tenth cause of action (violation of unfair competition law) for failing to state sufficient facts to constitute a cause of action;

4. Motion

to strike portions of the SAC pertaining to punitive damages and attorneys' fees.

TENTATIVE RULING:

1. Demurrer

to the SAC concerning Plaintiff Gabriela Aju Valenzuela is SUSTAINED;

2. Demurrers

to the SAC on statute of limitations, the sixth, eighth, and tenth causes of action are OVERRULED:

3. Motion

to strike is DENIED;

4. The

Crawford Defendants to file their answer within 14 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On February 25, 2025, Plaintiffs Melia Alvarado (by and through her guardian ad litem Astrid Lucero); Byron Fuentes (by and through his guardian ad litem Astrid Lucero); Gabriela Aju Valenzuela; Hazel Climaco-Zepeda; Kevin Climaco (by and through his guardian ad litem Alexander Climaco); Jesse Climaco (by and through his guardian ad litem Alexander Climaco); Luis Cisneros; Joshua Sanchez (by and through his guardian ad litem Cynthia Vasquez); Camila Delgado (by and through her guardian ad litem Cindy Delgado); Kevin Cardoso; Isaac Evaristo (by and through his guardian ad litem

Maria Ramirez); Ray Evaristo (by and through his guardian ad litem Maria Evaristo); Abigail Evaristo (by and through her guardian ad litem Maria Ramirez); Hazam Muhammed; Lilian Gutierrez; Amy Gutierrez (by and through her guardian ad litem Karla Diaz Guevara); Brian Serrano (by and through his guardian ad litem Karla Diaz Guevara) (sometimes collectively Plaintiffs) against Defendants APTS MGMT, LLC; Expo Apts, LLC; Gelber Apts, LLC; Crawford Park Financial, Inc.; Mary Joanna Crawford a/k/a Joanna Crawford; and Mark R. Crawford (sometimes collectively Defendants).

Plaintiffs allege eleven causes of action for: (1) negligence; (2) breach of implied warranty of habitability; (3) breach of the covenant of quiet enjoyment; (4) nuisance; (5) premises liability; (6) intentional infliction of emotional distress; (7) violation of Civ. Code § 1942.4; (8) constructive eviction and willful interruption of services; (9) retaliation; (10) violation of unfair competition law; and (11) breach of implied covenant of good faith and fair dealing.

According to the complaint, this is a habitability case involving real property located at 4024 and 4209 Gelber Place, Los Angeles, CA 90008 (the Properties). Plaintiffs allege that Defendants allowed two neighboring apartment buildings on Gelber Place to fall into severe disrepair for years, resulting in pervasive habitability defects including cockroach and rodent infestations, mold, plumbing failures, unsafe stairways, electrical hazards, and lack of heat. They assert that Defendants ignored repeated repair requests and government notices from LAHD and DPH identifying extensive code violations and ordering remediation. Plaintiffs claim they suffered physical ailments (such as insect bites, respiratory issues, and rashes) as well as emotional distress from living in unsafe, unsanitary, and unstable housing conditions. They further allege that Defendants demanded full rent despite the uninhabitable conditions and engaged in hostile or retaliatory conduct when tenants complained.

On May 14, 2025, Plaintiffs filed a first amended complaint (FAC). The FAC is largely identical to the original complaint.

On January 20, 2026, Defendants Mark Crawford, Mary Crawford a/k/a Joanna Crawford, Apts Management, LLC, Gelber Apts, LLC, and Expo Apts, LLC (collectively the Crawford Defendants) filed a demurrer with motion to strike. The court SUSTAINED the demurrer and DENIED the motion to strike with leave to amend.

On April 7, 2026, Plaintiffs filed the operative second amended complaint (SAC).

On May 7, 2026, the Crawford Defendants filed the instant demurrer with motion to strike.

On May 11, 2026, Plaintiffs filed a fictitious name amendment changing Prop Mgmt LLC for DOE 1.

On May 13, 2026, Plaintiff filed requests for dismissal of Defendants Mark R. Crawford and Mary Crawford aka Joanna Crawford.

On May 13, 2026, Plaintiff filed a fictitious name amendment changing Mashcole Property Management, Inc. from DOE 2.

On May 29, 2026, Defendant Crawford Park Financial, Inc. filed a motion to strike. On June 1, 2026, they filed a demurrer to the SAC.

On June 30, 2026, Plaintiffs filed oppositions to the Crawford Defendants' demurrer with motion to strike. Replies were filed on July 6, 2026.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). ˆThe meet and confer requirement also applies to motions to strike. (CCP § 435.5.)ˆ

Here, the parties met and conferred via telephone on May 1, 2026. (Levine Decl. ¶ 4.) This requirement is therefore met.

Demurrer –

Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, 147 Cal.App.4th at 747.)

;

When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94 (Frantz).)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.) "When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend." (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768.)

ANALYSIS:

Demurrer

To start, the court sets out the Plaintiffs

Plaintiff Name

Minor

Property Living/Lived

Gabriela Aju Valenzuela

N

4024, Unit 4 since 2002

Lilian Gutierrez

N

4029, Unit 2 [2011-2015] Unit 28 [2015-2021]

Amy Gutierrez

Y

4029, Unit 2 [2011-2015] Unit 28 [2015-2021]

Brian Serrano

Y

4029, Unit 2 [2013-2015] Unit 28 [2015-2021]

Hazel Climaco-Zepeda

N

4029, Unit 3 [2009-present]

Kevin Climaco

N

4029, Unit 3 [2009-present]

Jesse Climaco

Y

4029, Unit 3 [2014-present]

Luis Cisneros

N

4029, Unit 6 [2011-2020]

Melia Alvarado

Y

4029, Unit 10 [2017-2020]

Byron Fuentes

Y

4029, Unit 10 [2017-2020]

Joshua Sanchez

Y

4029 [2010-present]

Camila Delgado

Y

4029, Unit 18 [2015-present]

Kevin Cardoso

N

4029, Unit 21 [2009-present]

Isaac Evaristo

Y

4029, Unit 22 [2013-present]

Ray Evaristo

Y

4029, Unit 22 [2013-present]

Abigail Evaristo

Y

4029, Unit 22 [2017-present]

Hazam Muhammed

N

4029, Unit 26 [2003-2021]

Entire SAC –
Time-Barred

Defendants contend the claims are all time-barred for the adult Plaintiffs. Those Plaintiffs are: Gabriela Aju Valenzuela, Lilian Gutierrez, Hazel Climaco-Zepeda, Kevin Climaco, Luis Cisneros, Kevin Cardoso, and Hazam Muhammed (collectively, the Adult Plaintiffs). Defendants contend the facts on the face of the SAC show the claims accrued by December 2017 so the Adult Plaintiffs' case, filed February 25, 2025, is untimely on all claims. They add that the allegation these claims somehow relate back to a filing in a separate case is unsupported by law.

Plaintiffs argue that equitable tolling applies to these claims.

The limitations periods for each cause of action, in order of appearance, are as follows:

The statute of limitations for negligence is two years. (CCP § 335.1.)

The statute of limitations for breach of implied warranty of habitability is four years. (CCP §§ 337 and 337.2 [breach of written lease and abandonment of property]; See *Green v. Superior Court* (1974) 10 Cal.3d 616, 624 ["Our holding in this case reflects our belief that the application of contract principles, including the mutual dependency of covenants, is particularly appropriate in dealing with residential leases of urban dwelling units."])

The statute of limitations for breach of the covenant of quiet enjoyment is four years. (CCP §§ 337 and 337.2.)

The statute of limitations for nuisance is three years. (CCP § 338(b).) The statute of limitations for premises liability is two years. (CCP § 335.1.)

The statute of limitations for intentional infliction of emotional distress is two years. (CCP § 335.1; *Wassmann v. South Orange County Community College District* (2018) 24 Cal.App.5th 825, 852-853.)

The statute of limitations for violation of Civ. Code § 1942.4 is three years. (CCP § 338.)

The statute of limitations for constructive eviction and willful interruption of services is four years. (CCP §§ 337 and 337.2.)

The statute of limitations for retaliation (Civ. Code § 1942.5) is three years. (CCP § 338.)

The statute of limitations for violation of unfair competition law is four years. (*Cortez v. Purolator Air Filtration Products Co.* (2000) 23 Cal.4th 163, 178-179.)

The statute of limitations for breach of implied covenant of good faith and fair dealing is four years. (CCP §§ 337 and 337.2.)

i.

Equitable tolling

“Equitable tolling is a judicially created doctrine that, where applicable, will suspend or extend a statute of limitations as necessary to ensure fundamental practicality and fairness.” (Long v. Forty Niners Football Co., LLC (2019) 33 Cal.App.5th 550, 554-555 [internal quotations omitted].) It applies when an injured person has several legal remedies and, reasonably and in good faith, pursues one. (Id. at p. 555.) “Thus, it may apply where one action stands to lessen the harm that is the subject of a potential second action; where administrative remedies must be exhausted before a second can proceed; or where a first action, embarked upon in good faith, is found to be defective for some reason.” (Ibid.)

A plaintiff seeking the benefit of equitable tolling must show: “timely notice, and lack of prejudice, to the defendant, and reasonable and good faith conduct on the part of the plaintiff.” (Long, supra, 33 Cal.App.5th at p. 555.) Timely notice means the first claim was filed within the statutory period and must alert the defendant in the second claim of the need to begin investigating the facts which form the basis for the second claim. (Hopkins v. Kedzierski (2014) 225 Cal.App.4th 736, 747.) “The second prerequisite essentially translates to a requirement that the facts of the two claims be identical or at least so similar that the defendant’s investigation of the first claim will put him in a position to fairly defend the second.” (Ibid.) While the third element is not clearly defined, there is a timing component where quick refiling satisfies it. (Ibid.)

“Where a claim is time-barred on its face, the plaintiff must specifically plead facts that would support equitable tolling.” (Long, supra, 33 Cal.App.5th at p. 555.)

Here, the requirements for equitable tolling are met. First, Plaintiffs allege a prior claim filed within the statutory period where Plaintiffs asserted the same claims as in this action. (SAC ¶ 40.) This satisfies the first element. Second, Plaintiffs allege the claims were the same, which satisfies the second element. (SAC ¶ 40.) Third, Plaintiffs allege that after receiving an adverse ruling on their demurrer due to misjoinder of the Crawford Defendants, they dismissed those claims. (SAC ¶¶ 42, 43, 44.) It appears that the tolling therefore applied between the initial filing on April 28, 2023 and the ruling on the demurrer on December 12, 2024. Two months later, Plaintiffs refiled this second action. In short, it does not appear untimely on

its face.

Accordingly, the court OVERRULES the Crawford Defendants' demurrer to the entire SAC on this ground.

Entire Complaint – Gabriela Aju Valenzuela
Misjoinder

The Crawford Defendants contend Plaintiff Gabriela Aju Valenzuela is misjoined because she resides at a separate property and none of the facts alleged pertained to that property.

Plaintiffs argue that Plaintiff Gabriela Aju Valenzuela is properly included under the permissive joinder statute because there are common questions of law and fact between the neighboring apartment buildings with the same owners and same habitability issues.

CCP § 378(a) provides that all persons may join as plaintiffs if: "(1) They assert any right to relief jointly, severally, or in the alternative, in respect of or arising out of the same transaction, occurrence, or series of transactions or occurrences and if any question of law or fact common to all these persons will arise in the action; or [¶] They have a claim, right, or interest adverse to the defendant in the property or controversy which is the subject of the action."

There is a presumption in favor of joinder. (Smith v. Superior Court of Alameda County (2026) --- Cal.Rptr.3d ---- at *5.) A "right to relief arises from the same transaction or occurrence under section 378 so long as there is any factual relationship between the claims joined." (Ibid.)

After reviewing the SAC, the court agrees with the Crawford Defendants that Plaintiff Gabriela Aju Valenzuela is misjoined. Critically, Plaintiff Valenzuela resides at a separate property – 4024 Gelber Place. (SAC ¶ 9.) The remaining Plaintiffs reside at a different property – 4029 Gelber Place. (SAC ¶¶ 10-25.) There are no allegations of a common scheme, series of transactions or occurrences, or common questions of law or fact. (Smith, supra at *6.)

Accordingly, the court SUSTAINS the demurrer on this ground.

Sixth Cause of

Action – Intentional Infliction of Emotional Distress (IIED)

The Crawford Defendants contend this claim fails to allege that Plaintiffs suffered severe emotional distress or that the Crawford Defendants acted with actual malice.

Plaintiffs argue that these arguments are irrelevant to whether they sufficiently plead their claim, which they did.

The necessary elements for intentional infliction of emotional distress (IIED) are: (1) outrageous conduct by the defendant; (2) which was intentional or reckless in nature; (3) severe emotional distress; and (4) causation. (Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc., (2005) 129 Cal.App.4th 1228, 1259 (Huntingdon).) For purposes of pleading IIED,

conduct is outrageous if it is “so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Davidson v. City of Westminster (1982) 32 Cal.3d 197, 209.)

;

Although emotional distress may consist of any highly unpleasant mental reaction such as fright, grief, shame, humiliation, embarrassment, anger, chagrin, disappointment or worry [citation], to make out a claim, the plaintiff must prove that emotional distress was severe and not trivial or transient.” (Wong v. Tai Jing (2010) 189 Cal. App. 4th 1354, 1376.) Such distress must be “of such substantial quality or enduring quality that no reasonable person in civilized society should be expected to endure it.” (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal. 4th 965, 1004.)

;

Here, Plaintiffs sufficiently alleged their claim for IIED. The element at issue is whether Plaintiffs alleged emotional distress. They did. (SAC ¶¶ 77, 144.) This allegation is bolstered by prior allegations of being children (or minors) at the time of living in extremely dilapidated conditions.

(SAC ¶ 142.) This is sufficient for the pleadings stage.

Accordingly, the court OVERRULES the demurrer to the sixth cause of action.

Eighth Cause of
Action – Willful Interruption of Services

The Crawford Defendants contend this claim fails because Plaintiffs remain in possession.

Plaintiffs argue this is a requirement for constructive eviction, not willful interruption of services.

“A landlord shall not with intent to terminate the occupancy under any lease or other tenancy or estate at will, however created, of property used by a tenant as his residence willfully cause, directly or indirectly, the interruption or termination of any utility service furnished the tenant, including, but not limited to, water, heat, light, electricity, gas, telephone, elevator, or refrigeration, whether or not the utility service is under the control of the landlord.”

(Civ. Code § 789.3.)

After reviewing the SAC, Plaintiffs sufficiently stated this claim. First, it does not matter that they remain in possession as that is not a statutory element. Second, Plaintiffs alleged they held a leasehold interest in the subject properties, the Crawford Defendant willfully interrupted utility services including those for heat and electricity, with the intent to terminate the occupancy/leasehold. (SAC ¶¶162, 163, 164.) This is sufficient for the pleadings stage.

Accordingly, the court OVERRULES the demurrer to the eighth cause of action.

Tenth Cause of
Action – Violation of Unfair Competition Law

The Crawford Defendants contend this claim is separately time-barred because no tolling applies.

Plaintiffs argue that tolling applies because the UCL is not explicitly exempted from CCP § 352.

For similar reasons articulated as to the entire SAC, the court OVERRULES the demurrer on this ground.

Motion to Strike

The Crawford Defendants move to strike the following portions of the SAC:

1. ¶ 94, 20:23-28: "Defendants' tortious breach of their duties was willful,

deliberate, malicious, and oppressive, amounting to despicable conduct in

conscious disregard of Plaintiffs' rights that subjected Plaintiffs to cruel and

unjust hardship, so as to entitle Plaintiffs to an award of punitive and

exemplary damages. Plaintiffs are therefore entitled to punitive and

exemplary damages against Defendants in an amount sufficient to punish

them and deter them and others from engaging in similar conduct, as

determined at trial."

2. ¶ 114, 23:27-24:4: "Defendants' tortious breach of the covenant of quiet

enjoyment was grossly negligent, malicious, and/or oppressive, amounting

to despicable conduct in conscious disregard of Plaintiffs' rights, wellbeing,

and safety in that it subjected Plaintiffs to cruel and unjust hardship,

so as to entitle Plaintiffs to an award of punitive and exemplary damages

against Defendants in an amount sufficient to punish them and deter them

and others from engaging in similar conduct, as determined at trial to the

extent allowed by law.”

3. ¶ 115, 24:5-6: “Plaintiffs are entitled to recover their reasonable attorneys’

fees incurred in bringing and litigating this matter, and costs of the suit

herein.”

4. ¶ 125, 25:20-24: “Defendants’ failure to abate the nuisance was

unreasonable, willful, deliberate, malicious, and oppressive, amounting to

despicable conduct that subjected Plaintiffs to cruel and unjust hardship in

conscious disregard of their rights, so as to entitle Plaintiffs to an award of

punitive and exemplary damages. against Defendants in an amount

sufficient to punish them and deter them and others from engaging in similar

conduct, as determined at trial.”

5. ¶ 126, 25:25-26: “Plaintiffs are entitled to recover their reasonable

attorneys’ fees incurred in bringing and litigating this matter and the costs

of the suit herein.”

6. ¶ 135, 27:6-10: “Defendants’ tortious breach of their duty of care was

willful, malicious, and oppressive, amounting to despicable conduct that

subjected Plaintiffs to cruel and unjust hardship, so as to entitle Plaintiffs to

an award of punitive and exemplary damages against Defendants in an

amount sufficient to punish them and deter them and others from engaging

in similar conduct.”

7. ¶ 136, 27:11-12: “Plaintiffs are entitled to recover their reasonable

attorneys’ fees incurred in bringing and litigating this matter and costs of

the suit.”

8. ¶ 146, 29:9-13: “Further, in failing to correct the

defects within a reasonable

time, or at all, despite Plaintiffs' and/or Plaintiffs'
respective parents'

numerous requests to Defendants, as alleged in this
Complaint, Defendants'

conduct was willful, deliberate, malicious, and oppressive,
amounting to

despicable conduct that subjected Plaintiffs to cruel and
unjust hardship in

conscious disregard of their rights, so as to entitle
Plaintiffs to an award of

punitive and exemplary damages. Plaintiffs are entitled to
punitive and

exemplary damages against Defendants."

9. ¶ 167, 32:11: "Each Plaintiff is also entitled to
reasonable attorneys' fees

and costs."

10. Page 35:26 - "3. For punitive damages in an amount to be
proven at trial."

11. Page 36:11 - "3. For punitive damages in an amount to be
proven at trial."

12. Page 36:12-13: "4. Reasonable attorneys' fees and costs
as the prevailing

party for breach of a covenant implied in a written
agreement."

13. Page 36:20 - "3. For punitive damages in an amount to be

proven at trial.”

14. Page 36:27 - “3. For exemplary and punitive damages in an amount to be

proven at trial.”

15. Page 37:4 - “2. For punitive damages in an amount to be proven at trial.”

16. Page 37:21-23 - “3. For punitive damages in an amount of not less than

\$100 nor more than \$2,000 for each retaliatory act where the lessor or agent

has been guilty of fraud, oppression, or malice with respect to that act per

Civil Code 1942.5(h).”

17. Page 38:1-2-“2. Reasonable attorneys’ fees, pursuant to Code of Civil

Procedure section 1021.5, in an amount to be determined after trial.”

18. Page 38:9 - “2. For reasonable attorneys’ fees, where allowed by law.”

Punitive Damages

The Crawford Defendants contend Plaintiffs insufficiently alleged facts supporting punitive damages and did not allege acts by corporate leaders.

Plaintiffs argue they sufficiently alleged facts supporting punitive damages via the Crawford Defendants’ endangering Plaintiffs’ health and safety through the dilapidated conditions of the subject properties. They argue further that they allege liability of the corporate entities via their

agents Mark Crawford and Mary Crawford a/k/a Joanna Crawford.[2]

To obtain punitive damages, a plaintiff must plead

sufficient facts in support of punitive damages. (See *Hilliard v. A.H. Robins Co.* (1983) 148 Cal.App.3d 374, 391-92.) In addition, punitive damages are allowed only where “it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code, § 3294(a).) Courts have viewed despicable conduct as conduct “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. (*Scott v. Phoenix Schools, Inc.*, (2009) 175 Cal.App.4th 702, 715.) Further, Civil Code § 3294(c) provides the definition of malice, oppression, and fraud. Malice is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Ibid.*) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” (*Ibid.*) Fraud is “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (*Ibid.*)

In *Stoiber*

v. Honeychuck, the premises was so dilapidated that it needed to be torn down. ((1980) 101 Cal.App.3d 903, 912 [describing the following defects identified by the Kern County health Department: “heavy cockroach infestation, broken interior walls broken deteriorated flooring on front porch, falling ceiling, deteriorated, overfused electrical wiring, lack of proper plumbing connection to sewage system in bathroom, sewage under bathroom floor, leaking roof, broken, windows, and fire hazard.”]) The Court there found that the plaintiff pled sufficient facts to support her prayer for punitive damages because the defendant had actual knowledge of defective conditions in the premises, acted with full knowledge of the consequences thereof and the damage being caused to plaintiff, and their conduct was willful, oppressive, and malicious. (*Id.* at p. 920.)

Here, as in *Stoiber*,

Plaintiffs alleged that the Crawford Defendants had actual knowledge of the defects, that the defects were causing Plaintiff damages, and that Defendants’ conduct was willful, oppressive, and malicious. (SAC ¶ 6; see also SAC ¶¶ 55-72 [multiple reports from governmental inspections].) This is sufficient for the pleadings stage.

Accordingly, the court DENIES the motion to strike punitive damages.

Attorneys' Fees

There is no argument supporting this request. The court considers it abandoned. [See, e.g., *Atchley v. City of Fresno* (1984) 151 Cal. App. 3d 635, 647 ["Where a point is merely asserted by appellant's counsel without any argument of or authority for the proposition, it is deemed to be without foundation and requires no discussion by the reviewing court."]]

Accordingly, the court DENIES the motion to strike as to attorneys' fees request.

CONCLUSION:

For the foregoing reasons, the court decides the pending motion as follows:

1. Demurrer
to the SAC concerning Plaintiff Gabriela Aju Valenzuela is SUSTAINED;

2. Demurrers
to the SAC on statute of limitations, the sixth, eighth, and tenth causes of action are OVERRULED:

3. Motion
to strike is DENIED;

4. The
Crawford Defendants to file their answer within 14 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 13, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

Dismissals subsequently entered as to Mark R. Crawford, Mary Crawford aka
Joanna Crawford

[2]

Plaintiffs allege this in the SAC. (SAC ¶¶ 34, 49.)